



London Transport Act 1968

CHAPTER xviii

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ELIZABETH II



1968 CHAPTER xviii

1 Act to empower the London Transport Board to construct works and to acquire lands; to extend the time for the compulsory purchase of certain lands and the completion of certain works; to confer further powers on the Board; and for other purposes. [3rd July 1968]

WHEREAS by the Transport Act 1962 the London 1962 c. 46.
Transport Board (in this Act referred to as "the Board")
were established:

And whereas it is the duty of the Board under the Transport Act 1962 (inter alia) to provide or secure the provision of an adequate and properly co-ordinated system of passenger transport in the London Passenger Transport Area and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire lands referred to in this Act:

And whereas it is expedient that the period now limited for the compulsory purchase of certain lands and the completion of certain works should be extended as provided by this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the Greater London Council, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

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|-----------------------------|---|
| Short title. | 1. This Act may be cited as the London Transport Act 1968. |
| Division of Act into Parts. | 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Works.
Part III.—Lands.
Part IV.—Protective provisions.
Part V.—Miscellaneous. |
| Interpretation. | 3.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and— |
| 1845 c. 20. | “ the Act of 1845 ” means the Railways Clauses Consolidation Act 1845; |
| 1863 c. 92. | “ the Act of 1863 ” means the Railways Clauses Act 1863; |
| 1947 c. xlvii. | “ the Act of 1947 ” means the London Passenger Transport Act 1947; |

PART I
—cont.

- “ the Act of 1950 ” means the Public Utilities Street Works Act 1950; 1950 c. 39.
- “ the Act of 1962 ” means the British Transport Commission Act 1962; 1962 c. xlii.
- “ the Act of 1963 ” means the London Transport Act 1963; 1963 c. xxiv.
- “ the Act of 1964 ” means the London Transport Act 1964; 1964 c. xxvi.
- “ the Act of 1965 ” means the London Transport Act 1965; 1965 c. xli.
- “ the Act of 1966 ” means the London Transport Act 1966; 1966 c. xxxiii.
- “ the Board ” means the London Transport Board;
- “ the Council ” means the Greater London Council ;
- “ enactment ” includes any public general, local or private Act and any order or other instrument having the force of an Act;
- “ the limits of deviation ” means the limits of deviation shown on the deposited plans;
- “ the tribunal ” means the Lands Tribunal;
- “ the works ” means the works authorised by Part II (Works) of this Act.

2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works, powers or lands, shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

5. The following Acts and Parts of Acts, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

- (a) the Lands Clauses Acts, except sections 127 to 133 of the Lands Clauses Consolidation Act 1845; 1845 c. 18.
- (b) the Act of 1845, except sections 7, 8, 9, 11, 12, 17, 19, 20, 22 and 23 thereof; and
- (c) Part I (relating to construction of a railway) and Part II (relating to extension of time) of the Act of 1863:

PART I
—cont.

Provided that—

(i) for the purposes of the provisions of the Act of 1845 and the Act of 1863, as incorporated with this Act—

(A) the expression “the company” where used in the said incorporated provisions means the Board;

(B) Works Nos. 1, 2 and 3 shall be deemed to be railways authorised by the special Act;

(ii) the provisions of sections 18 and 21 of the Act of 1845, as incorporated with this Act, shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(A) by the provisions of Part II of the Act of 1950; or

(B) by the provisions of section 42 (For protection of gas, water and electricity undertakers) of the Act of 1963, as incorporated with this Act.

PART II

WORKS

Power to
make works.

5. Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In Greater London—

In the London boroughs of Lambeth and Southwark—

(Ventilation
subway at
Kennington.)

Work No. 1 A ventilation subway (32 yards in length) commencing by a junction with the northbound running tunnel of the Northern Line (Charing Cross branch) beneath a point 43 yards north of the junction of Cottington Street with Kennington Park Road and terminating by a junction with the northbound running tunnel of the Northern Line (City branch) beneath Kennington Park Road.

In the London borough of Hammersmith—

(Ventilation
subway at
Shepherds
Bush.)

Work No. 2 A ventilation subway (38 yards in length) commencing by a junction with the existing subway from the former lift shaft at Shepherds Bush station

(Central Line) and terminating by a junction with the eastbound station tunnel of the said station beneath Uxbridge Road.

PART II
—cont.

In the city of Westminster—

Work No. 3 A ventilation subway (35 yards in length) commencing by a junction with the existing stairwell at Lancaster Gate station (Central Line) and terminating by a junction with the eastbound running tunnel of the Central Line beneath Bayswater Road. (Ventilation subway at Lancaster Gate.)

5. In the execution of any, or any part, of the works shown on the deposited plans the Board may deviate from the lines or levels thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to such extent as may be found necessary or convenient. Power to deviate.

7. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:— Incorporation of provisions of Acts of 1963 and 1965 relating to works.

The Act of 1963—

Section 7 (Repair of roads where level not permanently altered);

Section 15 (Power to make trial holes); and

Section 16 (Use of sewers, etc., for removing water).

The Act of 1965—

Section 10 (Underpinning of houses near works):

Provided that—

- (i) the expression “river board” where used in the said section 16 of the Act of 1963, as so incorporated, shall mean a river authority established by an order under Part II of the Water Resources Act 1963, and shall include the Conservators of the River Thames and the Lee Conservancy Catchment Board and the definition of “river board” in subsection (5) of the said section 16 shall be construed accordingly ; and 1963 c. 38.
- (ii) for the purposes of the said section 16 of the Act of 1963, as so incorporated, the expression “local authority” in section 144 of the Local Government Act 1948 shall be deemed to include the Council. 1948 c. 26.

PART III

LANDS

8.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the Power to acquire lands.

PART III
—cont.

deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Without prejudice to the generality of the powers conferred upon the Board by subsection (1) of this section, the Board may subject to the provisions of this Act, enter upon, take and use for the purposes specified in column (3) of Schedule 1 to this Act all or any of the lands referred to in columns (1) and (2) of that schedule.

(3) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes mentioned in subsection (1) of this section without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

(4) The Board shall not under the powers of this section enter upon, take or use the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 1 and 2 in the county borough of Luton or any part of those lands.

Power to
acquire
subsoil or
easements
only in
certain cases.

9.—(1) Notwithstanding anything in this Act, the Board may, for the purposes of constructing, maintaining, protecting, renewing and using the works, enter upon, take and use so much of the subsoil and under-surface of or may acquire such easements or rights as they may require in, under or over—

(a) any railway, river, canal, navigation, watercourse, aqueduct, drain, dyke or sewer; or

(b) any of the lands described in Schedule 2 to this Act: without being obliged or compellable to acquire any greater interest in, under or over the same respectively, and may give notice to treat in respect of such entry, taking and using and, in respect of the acquisition of any such easements or rights, describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of the Lands Clauses Acts shall extend and apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those Acts.

(2) (a) If, in any case where the Board enter upon, take and use the subsoil and under-surface of, or require an easement or right in or under, any of the lands described in the said schedule, they also require to take, use and pull down or open any cellar, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, vault, arch or

er construction for the purposes of the works and (subject to the provisions of this Act) the provisions of the Lands Clauses Acts shall extend and apply in relation to the purchase thereof if such cellar, vault, arch or other construction were lands within the meaning of those Acts.

(b) Section 12 (Acquisition of part only of certain properties) of the Act of 1964, as incorporated with this Act, shall apply in respect of the acquisition by the Board under this subsection of any cellar, vault, arch or other construction as if the same were part of land to which that section applies.

0. The powers of the Board for the compulsory purchase of lands and easements which they are authorised by this Act to acquire shall cease on 31st December 1971.

Period for compulsory purchase of lands and easements.

1. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation of provisions of Acts of 1963, 1964, 1965 and 1966 relating to lands.

The Act of 1963—

Section 21 (Power to enter for survey or valuation);

Section 26 (Grant of easements by persons under disability); and

Section 28 (As to cellars under streets not referenced).

The Act of 1964—

Section 12 (Acquisition of part only of certain properties);

Section 13 (Disregard of recent improvements and interests); and

Section 14 (Extinction of private rights of way).

The Act of 1965—

Section 13 (Correction of errors in deposited plans and book of reference).

The Act of 1966—

Section 14 (Power to expedite entry):

Provided that—

(i) the provisions of the said section 21 of the Act of 1963, as so incorporated, shall have effect as if after the word “acquire” there were inserted the words “or use”;

(ii) the provisions of the said section 13 of the Act of 1964, as so incorporated, shall have effect as if for the reference therein to 5th December 1963, there was substituted a reference to 5th December 1967.

PART IV

PROTECTIVE PROVISIONS

Incorporation
of protective
provisions of
Acts of 1963
and 1965.

12. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Subsections (1) and (3) of section 32 (For further protection of Postmaster General); and

Section 42 (For protection of gas, water and electricity undertakers).

The Act of 1965—

Section 27 (For protection of sewers of Greater London Council); and

Section 28 (As to metropolitan roads and road traffic, etc.):

Provided that—

(i) the provisions of the said section 27 of the Act of 1965, as so incorporated, shall have effect as if—

(a) for the reference to “the said works” in paragraph (2) thereof there were substituted a reference to “the specified works”;

(b) for the reference in paragraph (7) thereof to section 11 (Incorporation of provisions of Act of 1963 relating to works) there were substituted a reference to section 7 (Incorporation of provisions of Acts of 1963 and 1965 relating to works) of this Act;

(ii) the provisions of the said section 28 of the Act of 1965, as so incorporated, shall have effect as if—

(a) in paragraph (3) the words “(except in the case of Work No. 1)” were omitted; and

(b) in paragraph (7) the words “for that road” were inserted after the word “loading” and the proviso at the end thereof were omitted.

PART V

MISCELLANEOUS

Extensions of
time.

13.—(1) The period now limited by the Act of 1965 for the compulsory purchase of the lands referred to in Part I of Schedule 3 to this Act is hereby extended until 31st December 1971.

(2) The period now limited by the Act of 1962 for the completion of the works referred to in Part II of that Schedule is hereby extended until 31st December 1974.

(3) In this section the word “lands” includes any easements or rights in, under or over land authorised to be acquired by the Act of 1947 and the Act of 1965.

Powers to
owners and
lessees to give
notice as to
purchase of
lands.

4.—(1) In this section—

“the enabling Act” means the Act of 1965;

“the land” means any land which is for the time being authorised to be acquired compulsorily by the Board by the enabling Act, not being land referred to in subsection (4) of this section;

“lessee” means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under subsection (2) of this section.

(2) If at any time after 31st December 1968 any person being the owner or lessee of any of the land shall give notice in writing to the Board of his desire for the acquisition as soon as may be, the Board of his interest in any part of the land specified in the notice, the Board shall within a period of three months after receipt of such notice—

(a) enter into a contract with such person for the acquisition of his interest in the land or such part thereof as may be specified in the contract; or

(b) serve a notice to treat on such person for the compulsory acquisition of his interest in the land specified in his notice or in such part thereof as may be required by them; or

(c) serve on such person notice in writing of their intention not to proceed with the purchase of his interest in the land specified in his notice.

(3) Where notice is given under the last foregoing subsection by an owner or lessee of land specified in the notice then—

(a) if the Board—

(i) fail to comply with that subsection; or

(ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with paragraph (b) of that subsection; or

(iii) serve notice on him in compliance with paragraph (c) of that subsection;

the powers conferred by the enabling Act for the compulsory purchase of his interest in the land so specified shall cease;

PART V
—cont.

(b) if his interest in part only of the land so specified is acquired in pursuance of such a notice to treat the powers conferred by the enabling Act for the compulsory purchase of his interest in the remainder of the land so specified shall cease.

(4) This section shall not apply to land which the Board are by the enabling Act authorised to acquire for the purposes of a work which is shown on the sections deposited in respect of the Bill for the enabling Act as intended to be constructed under the surface of such land.

Increase of
penalties for
avoiding
payment of
fare.

1936 c. cxxxi.
1950 c. liii.

15. Section 91 (Penalty for avoiding payment of fare) of the London Passenger Transport Act 1936, as amended by subsection (2) of section 41 (Increase of penalties for avoiding payment of fare and for offences against certain byelaws) of the British Transport Commission Act 1950, shall have effect as if in subsections (1) and (2) thereof for the words "five pounds" there were substituted the words "twenty pounds".

Saving for
town and
country
planning.
1962 c. 38.

16. The provisions of the Town and Country Planning Act 1962, and any restrictions or powers thereby imposed or conferred, in relation to land, shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

Arbitration.

17. Where under this Act any difference (other than a difference to which the provisions of the Lands Clauses Acts, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Costs of Act.

18. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

LANDS REFERRED TO IN SUBSECTION (2) OF SECTION 8 (POWER TO ACQUIRE LANDS) OF THIS ACT Section 8.

Area	No. on deposited plans	Purposes for which the lands may be acquired or used
(1)	(2)	(3)
Greater London— London borough of Tower Hamlets	1	For the extension and improve- ment of the switch house of the Board at Mile End.

SCHEDULE 2

DESCRIBING LANDS IN RESPECT OF WHICH SUBSOIL OR EASEMENTS MAY BE TAKEN AS PROVIDED BY SECTION 9 (POWER TO ACQUIRE SUBSOIL OR EASEMENTS ONLY IN CERTAIN CASES) OF THIS ACT Section 9.

Area	No. on deposited plans
(1)	(2)
WORK	No. 1
London borough of Lambeth ...	2 to 6
WORK	No. 2
London borough of Hammersmith	1 to 6
WORK	No. 3
City of Westminster ...	2.

SCHEDULE 3

PART I

LANDS THE PERIOD FOR THE COMPULSORY ACQUISITION OF WHICH IS EXTENDED BY THIS ACT TO 31ST DECEMBER 1971 Section 13.

1. The lands authorised to be acquired by section 18 (Power to take lands) of the Act of 1947 for the purposes of Works Nos. 7, 7A and 7B authorised by Part II (Works) of the Act of 1947.

SCH. 3
—cont.

2. The lands authorised to be acquired by section 12 (Power to acquire lands) of the Act of 1965 for the purposes of Works Nos. 1, 2 and 3 authorised by Part II (Works) of the Act of 1965.

PART II

WORKS THE PERIOD FOR THE COMPLETION OF WHICH IS EXTENDED BY
THIS ACT TO 31ST DECEMBER 1974

Works Nos. 6, 6A, 7, 7A, 7B, 8 and 8A authorised by Part II (Works)
of the Act of 1947.

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